

106	Alarcon vs. Akash Management LLC 2024-01378974	Case Management Conference CONTINUED
107	Alarcon vs. Akash Management LLC 2023-01365842	Case Management Conference CONTINUED
108	Mihailovic vs. Between The Sheets, Inc. 2024-01439140	Motion for Final Approval of Class Settlement Plaintiff Anna Mihailovic’s Motion for Final Approval of Class Action Settlement is CONTINUED to November 19, 2026, at 2:00 p.m. in Department CX102 in order to give Class Counsel an opportunity to address the issues identified below. This is a putative wage-and-hour class action. On 11/12/2024, Plaintiff Anna Mihailovic, individually and on behalf of all others similarly situated, filed a class action complaint against Defendants Between the Sheets, Inc. and BTS (NB), Inc, alleging various Labor Code wage-and-hour violations. (ROA # 2.) Defendants each answered on 12/18/2024. (ROA #13, 14.) On 11/4/2025, Plaintiff filed the Motion for Preliminary Approval of the Class Action Settlement, and submitted the Class Action Settlement Agreement and Class Notice for the Court’s review. The motion seeks preliminary approval of the parties’ proposed settlement of Plaintiff’s class claims for the non-reversionary gross settlement amount (GSA) of \$192,500. On 3/5/2026, the Court continued the first hearing on the motion and asked Class Counsel to address a few issues. Counsel has submitted supplemental materials, including an amended version of the settlement agreement (“Amended Settlement Agreement”) and an amended Class Notice. On 11/14/2025, Plaintiff filed the Motion for Preliminary Approval of Class Action Settlement. (ROA #51.) On 5/28/2026, at the second hearing on the

matter, the Court granted the motion. (ROA #69.) On 6/15/2026, the Court entered the order granting the motion. (ROA #75.)

On 8/21/2026, Plaintiff filed the instant Motion for Final Approval of Class Action and PAGA Settlement. (ROA #88.) The motion seeks approval of the amended version of the parties' Class Action Settlement Agreement ("Settlement Agreement"), which provides for the settlement of Plaintiff's class claims for the non-reversionary gross settlement amount ("GSA") of \$192,500. (ROA #86, Exh. 1.)

The Court has identified the following issues with the moving papers, which must be addressed by Class Counsel before final approval can be granted:

1. The administrator's late-filed supplemental declaration attests to receipt of one (1) opt-out request, but did not provide the name of the Class Member opting out.
2. The administrator's submitted declaration also fails to address whether any workweek disputes were submitted and, if so, how they were resolved.
3. Class Counsel has failed to submit evidence to support the attorneys' fee request in the form of time records or a summary of time spent on the substantive tasks, in order to enable the Court to evaluate the lodestar and fees claimed. Counsel's declaration should also state whether the time records were kept and created contemporaneously or otherwise. The Court also reminds counsel that the Court is unlikely to approve attorneys' fees in excess of thirty percent (30%) of the GSA absent unique circumstances.
4. Class Counsel has also failed to attest as to whether there is a fee-splitting agreement with any other counsel, or confirm there is none.
5. The Settlement Agreement defines "Administration Expenses Payment" as "the amount the Administrator will be paid from the Gross Settlement Amount to reimburse its reasonable fees and expenses in accordance with the Administrator's 'not to exceed' bid submitted to the Court in connection with Preliminary Approval of the Settlement." (ROA #86, Exh. 1, ¶ 1.3.) The Settlement Agreement also specifies that the "Administrator Expenses Payment not to exceed \$4,550.00 except for a showing of good cause and as approved by the Court." (*Id.* at ¶ 3.2.3.) In support of preliminary approval, administrator submitted a declaration attesting that "ILYM Group's fees are charged: hourly, fixed & per person. No additional charges will be incurred unless the class size increases, or additional services are requested. ILYM Group's fees associated with the administration of this settlement are: \$4,550.00." (ROA #52, ¶ 10.) Administrator also attached a quote with estimated fees & expenses of \$4,550.00. (*Id.* at Exh. C.) Now, in support of final approval, administrator's declaration attests that "ILYM Group's total fees and costs for services in connection with the administration of this Settlement, which includes fees and costs incurred to-date, as well as anticipated fees and costs for completion of the settlement administration, are \$5,850.00." (ROA #84, ¶ 14.) Yet the moving papers do not provide any explanation for the \$1,300 increase in costs or services. Nor was a new invoice provided. Class Counsel and administrator must explain this discrepancy and why Plaintiff is requesting that the Administrator Expense Payment exceed the \$4,550 provided in the settlement agreement.

Class Counsel must also provide a revised [Proposed] Order of Final Approval and Judgment with the following revisions:

1. The proposed order and judgment should identify the Settlement Agreement by its full name.
2. The proposed order and judgment should reference by name and ROA number the declaration(s) to which the Settlement Agreement and any amendments thereto are attached.
3. The proposed order and judgment must be updated to identify by name the one (1) Class Member who opted out and thus will not be bound by the judgment.
4. The proposed order and judgment should also address whether any class members submitted workweek disputes, and if so, how those disputes were resolved.
5. The proposed order and judgment should state that the settlement administrator will post a copy of the order and judgment on the website for 180 days.
6. Counsel should not leave blank but should instead propose a realistic Final Accounting hearing date, taking into account the deadlines associated with funding the settlement, mailing distributions, allowing the check-cashing deadline to pass, and depositing uncashed check funds pursuant to the terms of the Settlement Agreement. The Court usually sets these hearings 9-10 months after final approval if the check-cashing deadline is 180 days. The parties must report to the Court the total amount that was actually paid to class members and all others in accordance with the Settlement Agreement. All supporting papers must also be filed at least sixteen (16) court days before the Final Accounting hearing date.
7. The proposed order and judgment should state that the settlement administrator's final report should be filed at least 16 court days, not 5 court days, before the Final Accounting hearing.

The Court further refers Class Counsel to the "Guidelines for Approval of Class Action Settlements & PAGA Settlements" posted on the Court's website for Department CX102, available at <https://voypubapps.occourts.org/complex-civil-calendar>.

Class Counsel must file supplemental papers addressing the Court's concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. If supplemental papers addressing all of the Court's concerns cannot be filed by the pre-hearing deadline, Class Counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions.

Plaintiff is ordered to give notice of this ruling.